



EUROPEAN MILITARY AIRWORTHINESS REQUIREMENTS

EMAR M

CONTINUING AIRWORTHINESS REQUIREMENTS

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1.0	12 Oct 2015	Approved	Approval by MAWA Forum	All
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STATUS

The Status of the document can take 3 values:

Working Draft: Working copy to develop the proposed version or revision of the document.

Draft: Version to be proposed to the MAWA Forum by the Advisory Group.

Approved: Final version approved by the participating Member States for publication.

EDITION

The Edition Number will take the following format: **Edition X.YY**:

The **value of X** will change after a **major** revision of the document

The **value of Y** will change after a **minor** revision of the document

NOTE:

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This EMAR relies on definitions laid down in EMAD 1.

The forms referred to in this document can be found in the EMAR Forms document.

The term “contract” covers all types of written arrangements within military context (e.g. arrangement, tasking, agreement).

EMAR M REVISION STATUS**Commission Regulations reviewed**

The table below details the Implementing Rules (Commission Regulations) reviewed and considered by the MAWA CAWAG (Continuing Airworthiness Advisory Group) for EMAR M Ed. 2.1:

Commission reviewed	Regulation	Date	Subject
	Regulation (EU) No 1321/2014	26 Nov. 2014	Recast, repealing Regulation (EC) No 2042/2003
	Regulation (EU) No 2015/1088	03 Jul. 2015	M1: First amending regulation, alleviations for maintenance procedures for general aviation aircraft
	Regulation (EU) No 2015/1536	16 Sep. 2015	M2: Second amending regulation, alignment of rules for continuing airworthiness with Regulation (EC) No 216/2008, critical maintenance tasks and aircraft continuing airworthiness monitoring
	Regulation (EU) No 2018/1142	14 Aug. 2018	M5: Fifth amending regulation, introduction of certain categories of aircraft maintenance licences, the modification of the acceptance procedure of components from external suppliers and the modification of the maintenance training organisations' privileges
	Regulation (EU) No 2019/1383 and Corrigendum to Regulation (EU) 2019/1383 OJ L 230 of 06.09.2019) and Corrigendum to Regulation (EU) 2019/1383 OJ L 297/83 of 17.11.2022)	08 Jul. 2019	M6: Sixth amending regulation, safety management systems in continuing airworthiness management organisations and alleviations for general aviation aircraft concerning maintenance and continuing airworthiness management
	Regulation (EU) No 2019/1384	24 Jul. 2019	M7: Seventh amending regulation, use of aircraft listed on an air operator certificate for non-commercial operations and specialised operations, the establishment of operational requirements for the conduct of maintenance check flights, the establishment of rules on non-commercial operations with reduced cabin crew on board and introducing editorial updates concerning air operations requirements
	Regulation (EU) No 2020/270	25 Feb. 2020	M8: Eighth amending regulation, transitional measures for organisations involved in the continuing airworthiness

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		for general aviation and continuing airworthiness management and correcting that Regulation
Regulation (EU) No 2020/1159	5 Aug. 2020	M9: Ninth amending regulation, introduction of new additional airworthiness requirements
Regulation (EU) No 2021/700	26 Mar. 2021	M11: Eleventh amending regulation, amending and correcting Regulation (EU) No 1321/2014 as regards the maintenance data and the installation of certain aircraft components during maintenance

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SECTION A

TECHNICAL REQUIREMENTS

SUBPART A - GENERAL

M.A.101 Scope

This Section establishes the measures to be taken to ensure that the airworthiness of aircraft is maintained, including its maintenance. It also specifies the conditions to be met by organisations involved in such activities.

SUBPART B - ACCOUNTABILITY

M.A.201 Responsibilities

- (a) The Operating Organisation is accountable for the continuing airworthiness of an aircraft and shall ensure that no flight takes place unless:
- (1) the aircraft is maintained in an airworthy condition; and
 - (2) any operational and emergency equipment fitted is correctly installed and serviceable or clearly identified as unserviceable; and
 - (3) the Military Certificate of Airworthiness (MCoA) and the Military Airworthiness Review Certificate (MARC) remain valid; and
 - (4) the maintenance of the aircraft is performed in accordance with the Aircraft Maintenance Programme (AMP) as specified in EMAR M.A.302.

Note: For individual aircraft or types for which a MCoA or Military Restricted Certificate of Airworthiness is not appropriate, a Military Permit to Fly may be issued in accordance with national regulations.

- (b) When an aircraft is leased, the responsibilities for its continuing airworthiness shall be detailed in the leasing contract.
- (c) Any organisation performing maintenance shall be responsible for the tasks performed.
- (d) The Operating Organisation shall be responsible for the satisfactory accomplishment of the pre-flight inspection. That inspection shall be carried out by the pilot or another qualified person but shall not need to be carried out by an approved Maintenance Organisation (MO).
- (e) NOT APPLICABLE.
- (f) NOT APPLICABLE.
- (g) The Operating Organisation shall ensure that:
- (1) no flight takes place unless the conditions set out in point (a) are met;
 - (2) the tasks associated with continuing airworthiness are performed by a CAMO approved in accordance with EMAR CAMO; when the Operating Organisation is not a CAMO approved in accordance with EMAR CAMO, it shall conclude a written contract as regards the performance of those tasks in accordance with [Appendix I to EMAR M](#) with an organisation approved in accordance with EMAR CAMO;
 - (3) maintenance of military aircraft, and components thereof shall be carried out by an organisation approved in accordance with EMAR 145. Therefore, the CAMO referred to in point (2) is approved in accordance with EMAR 145 or that CAMO has concluded a written contract in accordance with EMAR CAMO.A.315(c) with organisations approved in accordance with EMAR 145.
- (h) NOT APPLICABLE.
- (i) NOT APPLICABLE.
- (j) The Operating Organisation shall ensure that any person authorised by the NMAA is granted access to any of its facilities, aircraft or documents related to its activities, including any subcontracted activities, to determine compliance with EMARs.
- (k) NOT APPLICABLE.

M.A.202 Occurrence reporting

- (a) Without prejudice to the reporting requirements set out in EMAR 145 and EMAR CAMO, any organisation responsible in accordance with [EMAR M.A.201](#) shall report any identified condition of an aircraft or component which endangers flight safety to:
 - (1) the NMAA;
 - (2) to the organisation responsible for the type design or supplemental type design.
- (b) The reports referred to in point (a) shall be made in a manner determined by the NMAA and shall contain all pertinent information about the condition known to the organisation making the report.
- (c) Where the maintenance or the airworthiness review of the aircraft is carried out on the basis of a written contract, the organisation responsible for those activities shall also report any condition referred to in point (a) to the Operating Organisation of the aircraft and, when different, to the CAMO concerned.
- (d) The organisation shall submit the reports referred to in points (a) and (c) as soon as possible, but no later than 72 hours from the moment when the organisation identified the condition to which the report relates, unless exceptional circumstances prevent this.
- (e) The organisation shall submit a follow-up report, providing details of actions which that organisation intends to take to prevent similar occurrences in the future, as soon as those actions have been identified. The follow-up report shall be submitted in a form and manner established by the NMAA.

SUBPART C – CONTINUING AIRWORTHINESS

M.A.301 Continuing airworthiness tasks

The aircraft continuing airworthiness and the serviceability of operational and emergency equipment shall be ensured by:

- (a) the accomplishment of pre-flight inspections;
- (b) the rectification of any defect and damage affecting safe operation in accordance with data specified in [EMAR M.A.304](#) and EMAR 145.A.45, while taking into account the Minimum Equipment List (MEL) and Configuration Deviation List (CDL), when existing;
- (c) the accomplishment of all maintenance in accordance with the AMP referred to in [EMAR M.A.302](#);
- (d) the release of all maintenance in accordance with EMAR 145;
- (e) the analysis of the effectiveness of the approved AMP referred to in [EMAR M.A.302](#);
- (f) the accomplishment of any applicable:
 - (1) Airworthiness Directive (AD);
 - (2) operational directive with a continuing airworthiness impact;
 - (3) continuing airworthiness requirement established by the NMAA;
 - (4) measures required by the NMAA in immediate reaction to a safety problem;
- (g) the accomplishment of modifications and repairs in accordance with [EMAR M.A.304](#);
- (h) delivering to the pilot-in-command, or to the Operating Organisation, the mass and balance statement reflecting the current configuration of the aircraft;
- (i) maintenance check flights, when necessary.

Note: not all of the points (a) to (i) may be applicable for operational and emergency equipment.

M.A.302 Aircraft Maintenance Programme (AMP)

- (a) Maintenance of each aircraft shall be organised in accordance with an AMP.
- (b) The AMP and any subsequent amendments thereto shall be approved by the NMAA.
- (c) The AMP and its amendments may be approved through an indirect approval procedure.
In that case, the indirect approval procedure shall be established by the CAMO concerned as part of the Continuing Airworthiness Management Exposition (CAME) referred to in EMAR CAMO.A.300 and shall be approved by the NMAA responsible for that CAMO.
- (d) The AMP shall demonstrate compliance with the:
 - (1) instructions issued by the NMAA;
 - (2) Instructions for Continuing Airworthiness:
 - (i) issued by the holders of the type certificate, restricted type certificate, supplemental type certificate, major repair design approval, MTSO authorisation or any other relevant approval issued under EMAR 21;
 - (ii) included in the airworthiness codes or equivalent standards referred to in EMAR 21.A.431B, if applicable;

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- (iii) issued by any organisation recognized by the NMAA.
- (3) TO BE ADDED LATER, IF REQUIRED.
- (e) By derogation to point (d), the Operating Organisation or the organisation managing the continuing airworthiness of the aircraft may deviate from the instruction referred to in point (d)(2) and propose escalated intervals in the AMP, based on data obtained from sufficient reviews carried out in accordance with point (h). Indirect approval is not permitted for the escalation of safety related tasks. The Operating Organisation or the organisation managing the continuing airworthiness of the aircraft may also propose additional instructions in the AMP.
- (f) The AMP shall contain details of all maintenance to be carried out, including frequency and any specific tasks linked to the type and specificity of operations.
- (g) The AMP shall include a reliability programme, unless otherwise specified by the NMAA.
- (h) The AMP shall be subject to periodic reviews and be amended accordingly when necessary. Those reviews shall ensure that the AMP continues to be up to date and valid in light of the operating experience and instructions from the NMAA, while taking into account new and modified maintenance instructions issued by the (Military) Type Certificate (MTC) and (Military) Supplementary Type Certificate (MSTC) holders and any other organisation that publishes such data in accordance with EMAR 21.

M.A.303 Airworthiness Directives

Any applicable Airworthiness Directive must be carried out within the requirements of that Airworthiness Directive, unless otherwise specified by the NMAA.

M.A.304 Data for modifications and repairs

An organisation repairing an aircraft or a component, shall assess any damage. Modifications and repairs shall be carried out using, as appropriate, the following data:

- (a) approved by the NMAA;
- (b) approved by an EMAR 21 Design Organisation;
- (c) contained in the requirements referred to in EMAR 21.A.431B;
- (d) produced by an organisation accepted by the NMAA.

M.A.305 Aircraft continuing airworthiness record system

- (a) At the completion of any maintenance, the aircraft Certificate of Release to Service (CRS) required by EMAR 145.A.50, shall be entered in the aircraft continuing airworthiness record system, as soon as practicable and no later than 30 days after the completion of any maintenance.
- (b) The aircraft continuing airworthiness record system shall contain the following:
 - 1. the date of the entry, the total in-service life accumulated in the applicable parameter for aircraft, engine(s) and/or propeller(s);
 - 2. the aircraft continuing airworthiness records described in points (c) and (d) below together with the supporting detailed maintenance records described in point (e) below;
 - 3. the aircraft technical log as required by [EMAR M.A.306](#).

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- (c) The aircraft continuing airworthiness records shall include the current mass and balance report and the current status of:
1. ADs and measures mandated by the NMAA in immediate reaction to a safety problem;
 2. modifications and repairs;
 3. compliance with the AMP;
 4. deferred maintenance tasks and deferred defects rectification;
 5. symmetry check report (if required).
- (d) The aircraft continuing airworthiness records shall include the current status specific to components of:
1. life-limited parts, including the life accumulated by each affected part in relation to the applicable airworthiness limitation parameter; and
 2. time-controlled components, including the life accumulated by the affected components in the applicable parameter, since the last accomplishment of scheduled maintenance, as specified in the AMP.
- (e) The Operating Organisation shall establish a system to keep the following documents and data in a form acceptable to the NMAA and for the periods specified below:
1. aircraft technical log system: the technical log or other data equivalent in scope and detail, covering the 36 months period prior to the last entry,
 2. the CRS and detailed maintenance records:
 - (i) demonstrating compliance with ADs and measures mandated by the NMAA in immediate reaction to a safety problem applicable to the aircraft, engine(s), propeller(s) and components fitted thereto, as appropriate, until such time as the information contained therein is superseded by new information equivalent in scope and detail but covering a period not shorter than 36 months;
 - (ii) demonstrating compliance with the applicable data in accordance with [EMAR M.A.304](#) for current modifications and repairs to the aircraft, engine(s), propeller(s) and any component subject to airworthiness limitations; and
 - (iii) of all scheduled maintenance or other maintenance required for continuing airworthiness of aircraft, engine(s), propeller(s), as appropriate, until such time as the information contained therein is superseded by new information equivalent in scope and detail but covering a period not shorter than 36 months.
 3. data specific to certain components:
 - (i) an in-service history record for each life-limited part based on which the current status of compliance with airworthiness limitations is determined;
 - (ii) the CRS and detailed maintenance records for the last accomplishment of any scheduled maintenance and any subsequent unscheduled maintenance of all life-limited parts and time-controlled components until the scheduled maintenance has been superseded by another scheduled

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- maintenance of equivalent scope and detail but covering a period not shorter than 36 months;
- (iii) NOT APPLICABLE.
4. Record-keeping periods when the aircraft is permanently withdrawn from service:
- (i) the data required by point (b)(1) in respect of aircraft, engine(s), and propeller(s) shall be retained for at least 12 months;
- (ii) the last effective status and reports as identified under points (c) and (d) shall be retained for at least 12 months; and
- (iii) the most recent CRS(s) and detailed maintenance records as identified under [EMAR M.A.305](#)(e)(2)(ii) and (e)(3)(i) shall be retained for at least 12 months.
- (f) The CAMO responsible for the management of continuing airworthiness tasks pursuant to [EMAR M.A.201](#) shall comply with the requirements regarding the aircraft continuing airworthiness record system and present the records to the NMAA upon request.
- (g) All entries made in the aircraft continuing airworthiness record system shall be clear and accurate. When it is necessary to correct an entry, the correction shall be made in a manner that clearly shows the original entry.

M.A.306 Aircraft technical log system

- (a) In addition to the requirements of [EMAR M.A.305](#), an Operating Organisation shall use an aircraft technical log system containing the following information for each aircraft:
1. information about each flight, necessary to ensure continued flight safety; and
 2. the current aircraft Certificate of Release to Service; and
 3. the current maintenance statement giving the aircraft maintenance status of what scheduled and out of phase maintenance is next due except that the NMAA may agree to the maintenance statement being kept elsewhere; and
 4. all outstanding deferred defects rectifications that affect the operation of the aircraft; and
 5. any necessary guidance instructions on maintenance support arrangements.
- (b) The initial issue of aircraft technical log system shall be approved by the NMAA. Any subsequent amendment to that system shall be managed in accordance with EMAR CAMO.A.300(c).

M.A.307 Transfer of aircraft continuing airworthiness records

- (a) When an aircraft is permanently transferred from one Operating Organisation to another, the transferring Operating Organisation shall ensure that the continuing airworthiness records referred to in [EMAR M.A.305](#) and the aircraft technical log system referred to in [EMAR M.A.306](#), are also transferred.
- (b) When the Operating Organisation contracts the continuing airworthiness management tasks to a CAMO, the Operating Organisation shall ensure that the continuing airworthiness records referred to in [EMAR M.A.305](#) are transferred to that contracted CAMO.

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- (c) The time periods for the retention of records set out in [EMAR M.A.305\(e\)](#) shall continue to apply to the new Operating Organisation or CAMO.

SUBPART D – MAINTENANCE STANDARDS

M.A.401 Maintenance data

Refer to EMAR 145.A.45.

M.A.402 Performance of maintenance

NOT APPLICABLE – see EMAR 145.

M.A.403 Aircraft defects

- (a) Any aircraft defect that hazards seriously the flight safety shall be rectified before further flight.
- (b) Only the authorised certifying staff, according to EMAR 145 can decide, using EMAR 145.A.45 maintenance data, whether an aircraft defect hazards seriously the flight safety and therefore decide when and which rectification action shall be taken before further flight and which defect rectification can be deferred. However, this does not apply when the MEL and CDL, when existing, are used by the pilot or by the authorised certifying staff.
- (c) Any aircraft defect that would not hazard seriously the flight safety shall be rectified as soon as practicable, after the date the aircraft defect was first identified and within any limits specified in the maintenance data or the MEL.
- (d) Any defect not rectified before flight shall be recorded in the aircraft continuing airworthiness record system referred to in [EMAR M.A.305](#) and in the aircraft technical log system referred to in [EMAR M.A.306](#).

SUBPART E - COMPONENTS

M.A.501 Classification and installation

- (a) All components shall be classified into the following categories:
 - (1) Components which are in a satisfactory condition, released on an EMAR Form 1 (referred to in Appendix II to EMAR M) or equivalent and marked in accordance with Subpart Q of EMAR 21, unless otherwise specified in EMAR 21.A.307, in EMAR M.A.502 or in EMAR 145;
 - (2) Unserviceable components, refer to EMAR 145.A.42(a)(ii);
 - (3) Unsalvageable components, refer to EMAR 145.A.42(a)(iii);
 - (4) Standard parts, refer to EMAR 145.A.42(a)(iv);
 - (5) Raw and consumable material, refer to EMAR 145.A.42(a)(v).
- (b) Components, standard parts and material shall only be installed on an aircraft or a component when they are in a satisfactory condition, belong to one of the categories listed in point (a) and the applicable maintenance data specifies the particular component, standard part or material.

M.A.502 Component maintenance

- (a) The maintenance of components requiring an EMAR Form 1 in accordance with EMAR 21.A.307 shall be performed by maintenance organisations approved in accordance with EMAR 145.
- (b) By derogation to point (a), where a component is fitted to the aircraft, the maintenance of such a component may be performed by an aircraft maintenance organisation approved in accordance with EMAR 145. Such maintenance shall be performed in accordance with the aircraft maintenance data or in accordance with the component maintenance data if agreed by the NMAA. Such aircraft maintenance organisation may temporarily remove the component for maintenance if this is necessary to improve access to the component, except where additional maintenance is required due to the removal. Component maintenance performed in accordance with this point shall not be eligible for the issuance of an EMAR Form 1 and shall be subject to the aircraft release requirements provided for in EMAR 145.A.50.
- (c) By derogation to point (a), where a component is fitted to the engine or Auxiliary Power Unit (APU), the maintenance of such component may be performed by an engine maintenance organisation approved in accordance with EMAR 145. Such maintenance shall be performed in accordance with provisions of point (f) of Appendix II to EMAR 145.
- (d) NOT APPLICABLE.
- (e) NOT APPLICABLE.

M.A.503 Life-limited parts and time-controlled components

- (a) Installed life-limited parts and time-controlled components shall not exceed the approved limitation as specified in the AMP and ADs, except as provided for in [EMAR M.A.504\(b\)](#).
- (b) When the approved limitation expires, the component shall be removed from the aircraft for maintenance, or for disposal in the case of life-limited parts.

M.A.504 Segregation of components

- (a) Unserviceable and unsalvageable components shall be segregated from serviceable components, standards parts and materials.
- (b) Unsalvageable components, refer to EMAR 145.A.42(c)(ii).

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SUBPART F – MAINTENANCE ORGANISATION

NOT APPLICABLE

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SUBPART G – CONTINUING AIRWORTHINESS MANAGEMENT ORGANISATION (CAMO)

NOT APPLICABLE – See EMAR CAMO.

SUBPART H – CERTIFICATE OF RELEASE TO SERVICE (CRS)

NOT APPLICABLE - See EMAR 145

SUBPART I – MILITARY AIRWORTHINESS REVIEW CERTIFICATE (MARC)

M.A.901 Aircraft airworthiness review

To ensure the validity of the Military Certificate of Airworthiness an airworthiness review of the aircraft and its continuing airworthiness records shall be carried out periodically.

- (a) A MARC is issued in accordance with EMAR Form 15a or 15b upon completion of a satisfactory airworthiness review. The MARC shall be valid for 1 year.
- (b) An aircraft in a controlled environment is an aircraft which, during the preceding 12 months:
 - 1. has had its airworthiness continuously managed by an organisation approved in accordance with EMAR CAMO;
 - 2. has been maintained by a maintenance organisation approved in accordance with EMAR 145.
- (c) For all aircraft that are in a controlled environment, the organisation referred to in point (b)(1) managing the continuing airworthiness of the aircraft may in accordance with EMAR CAMO.A.125(e) and subject to compliance with point (j):
 - 1. issue a MARC in accordance with [EMAR M.A.901](#);
 - 2. extend at most twice the validity of the MARC it has issued, for a period of 1 year each time, where the aircraft concerned has remained within a controlled environment.
- (d) For all aircraft that are not in a controlled environment or have their continuing airworthiness managed by a CAMO that does not hold the privilege to carry out airworthiness reviews, the MARC shall be issued by the NMAA upon satisfactory assessment based on a recommendation made by a CAMO appropriately approved in accordance with EMAR CAMO.A.125(e)2, sent together with the application from the Operating Organisation/CAMO. This recommendation shall be based on an airworthiness review carried out in accordance with [EMAR M.A.901](#).
- (e) NOT APPLICABLE.
- (f) By derogation from point (c)(2), for aircraft that are in a controlled environment, the organisation referred to in point (b)(1) managing the continuing airworthiness of the aircraft, may, subject to compliance with point (j), extend at most twice the validity of a MARC that the NMAA or another CAMO has issued, for a period of 1 year each time.
- (g) Whenever circumstances reveal the existence of a potential risk to aviation safety, the NMAA shall carry out the airworthiness review and issue the MARC itself. In addition, the NMAA may carry out an airworthiness review at any time it considers it appropriate to do so.
- (h) NOT APPLICABLE.
- (i) Where the NMAA issues the MARC itself in accordance with point (g) or after assessing the recommendation in accordance with [EMAR M.B.901](#), the Operating Organisation of the aircraft shall, where necessary for those purposes, provide the NMAA with:
 - 1. any documentation required by the NMAA;
 - 2. suitable accommodation at the appropriate location for its personnel;
 - 3. the support of the certifying staff.

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- (j) A MARC shall not be issued, nor extended if there is evidence or indications that the aircraft is not airworthy.
- (k) The airworthiness review of the aircraft shall include a full documented review of the aircraft records establishing that the following requirements have been met:
1. airframe, engine and propeller flying hours and associated flight cycles have been properly recorded;
 2. the flight manual is applicable to the aircraft configuration and reflects the latest revision status;
 3. all the maintenance due on the aircraft pursuant to the approved AMP has been carried out;
 4. all known defects have been corrected or, when applicable, carried forward in a controlled manner; in accordance with [EMAR M.A.403](#);
 5. all applicable ADs have been applied and properly registered;
 6. all modifications and repairs applied to the aircraft have been registered and are in compliance with [EMAR M.A.304](#);
 7. all life-limited parts and time-controlled components installed on the aircraft are properly identified, registered and have not exceeded their limitation;
 8. all maintenance has been released by an approved EMAR 145 maintenance organisation;
 9. the current mass and balance statement reflects the current configuration of the aircraft and is valid;
 10. the aircraft complies with the latest revision of its type design approved by the NMAA;
 11. if required by the NMAA, the aircraft holds a noise certificate corresponding to the current configuration of the aircraft in compliance with Subpart I of EMAR 21;
 12. if required by the NMAA, the current symmetry report reflects the configuration of the aircraft and is valid.
- (l) The airworthiness review of the aircraft shall include a physical survey of the aircraft. For that survey, Airworthiness Review Staff (ARS) not appropriately qualified in accordance with EMAR 66 shall be assisted by such qualified staff.
- (m) Through the physical survey of the aircraft, the ARS shall ensure that:
1. all required markings and placards are properly installed;
 2. the aircraft complies with its approved flight manual;
 3. the aircraft configuration complies with the approved documentation;
 4. no evident defect can be found that has not been addressed in accordance with [EMAR M.A.403](#);
 5. no inconsistencies can be found between the aircraft and the documented review of records referred to in point (k).
- (n) By derogation from point (a), the airworthiness review may be anticipated by a maximum period of 90 days without loss of continuity of the airworthiness review pattern, so as to allow for the physical review to take place during a maintenance check.

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- (o) The MARC (EMAR Form 15b) or the recommendation for the issue of the MARC by the NMAA (EMAR Form 15a) referred to in [Appendix III to EMAR M](#) can only be issued:
 - 1. by authorised ARS on behalf of the approved organisation;
 - 2. if the airworthiness review has been completely carried out.
- (p) A copy of any MARC issued or extended for an aircraft shall be sent to the NMAA within 10 days.
- (q) Airworthiness review tasks shall not be subcontracted.
- (r) Should the outcome of the airworthiness review be inconclusive, the organisation having carried out the review shall inform the NMAA as soon as possible and in any case within 72 hours from the moment the organisation identifies the reason for which the airworthiness review is inconclusive.
- (s) The MARC shall not be issued until all findings have been closed. However, the MARC may be issued with level 2 findings still open provided that a corrective action plan is proposed by the CAMO and accepted by the NMAA.

M.A.902 Validity of the MARC

- (a) A MARC becomes invalid if:
 - 1. surrendered, suspended or revoked; or
 - 2. the Military Certificate of Airworthiness is suspended or revoked; or
 - 3. the aircraft is removed from the military aircraft register of the NMAA; or
 - 4. the (Military) Type Certificate under which the Military Certificate of Airworthiness was issued is suspended or revoked.
- (b) An aircraft shall not fly if the Military Certificate of Airworthiness is invalid or if:
 - 1. the continuing airworthiness of the aircraft or any component fitted to the aircraft does not meet the requirements of EMAR M; or
 - 2. the aircraft does not remain in conformity with the type design approved by the NMAA; or
 - 3. the aircraft has been operated beyond the limitations of the approved flight manual or the Military Certificate of Airworthiness, without appropriate action being taken; or
 - 4. the aircraft has been involved in an accident or incident that affects the airworthiness of the aircraft, without subsequent appropriate action to restore airworthiness; or
 - 5. a modification or repair is not in compliance with [EMAR M.A.304](#).
- (c) Upon surrender or revocation, the MARC shall be returned to the NMAA.

M.A.903 Transfer of aircraft registration within the EU

TO BE ADDED LATER, IF REQUIRED

M.A.904 Airworthiness review of aircraft imported into the EU

TO BE ADDED LATER, IF REQUIRED

M.A.905 Findings

- (a) A level 1 finding is any finding of significant non-compliance with the requirements of EMAR M, which lowers the safety standard and seriously endangers flight safety.
- (b) A level 2 finding is any finding of non-compliance with the requirements of EMAR M which may lower the safety standard and may endanger the flight safety.
- (c) After receipt of notification of findings according to [EMAR M.B.903](#), the Operating Organisation/CAMO shall define a corrective action plan and demonstrate corrective action to the satisfaction of the NMAA within a period agreed with this authority including appropriate corrective action to prevent reoccurrence of the finding and eliminate its root cause.
- (d) The Operating Organisation/CAMO shall consider the potential for non-compliance in other aircraft under its responsibility and take appropriate action in accordance with EMAR M.A.905(c).

SECTION B

PROCEDURES FOR NATIONAL MILITARY AIRWORTHINESS AUTHORITIES

SUBPART A - GENERAL

M.B.101 Scope

This Section establishes the administrative requirements to be followed by the NMAA in charge of the application and the enforcement of Section A of EMAR M.

M.B.102 National Military Airworthiness Authority (NMAA)

(a) General

A participating Member State shall designate its NMAA with allocated responsibilities for the issuance, suspension or revocation of certificates and for the oversight of continuing airworthiness.

This NMAA shall establish documented procedures and an organisational structure.

(b) Resources

The number of staff shall be appropriate to carry out the requirements as detailed in this Section B.

(c) Qualification and training

All staff involved in activities dealing with EMAR M shall be appropriately qualified and have appropriate knowledge, experience, initial training and continuation training to perform their allocated tasks.

(d) Procedures

The NMAA shall establish procedures detailing how compliance with EMAR M is accomplished.

The procedures shall be reviewed and amended to ensure continued compliance.

M.B.103 Findings and enforcement measure – persons

NOT APPLICABLE.

M.B.104 Record-keeping

(a) The NMAA shall establish a system of record-keeping, that allows adequate traceability of the process to issue, suspend or revoke each certificate.

(b) NOT APPLICABLE.

(c) NOT APPLICABLE.

(d) The minimum records for the oversight of each aircraft shall include, at least, a copy of:

1. the Military Certificate of Airworthiness;
2. Military Airworthiness Review Certificates;
3. Airworthiness review recommendations issued by CAMO;

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4. the reports from the airworthiness reviews carried out directly by the NMAA;
 5. all relevant correspondence relating to the aircraft;
 6. details of any exemption and enforcement action(s);
 7. any document approved by the NMAA pursuant to EMAR M.
- (e) The records specified in point (d) shall be retained until 2 years after the aircraft has been permanently withdrawn from service.
- (f) NOT APPLICABLE.
- (g) The records shall be stored in a manner that ensures protection from damage, alteration and theft.

M.B.105 Mutual exchange of information

- (a) If applicable (refer to EMAD R for the exchange of information between NMAAs), in order to contribute to the improvement of air safety, the NMMAs shall participate in a mutual exchange of all necessary information.
- (b) If applicable (refer to EMAD R for the exchange of information between NMAAs), without prejudice to the competencies of the pMSs, in the case of a potential safety threat involving several pMSs, the concerned NMAAs shall assist each other in carrying out the necessary oversight action.

SUBPART B - ACCOUNTABILITY

M.B.201 Responsibilities

The NMAA is responsible for conducting audits, inspections and investigations in order to verify that the requirements of EMAR M are complied with.

M.B.202 Information to other NMAAs

- (a) NOT APPLICABLE.
- (b) If applicable (refer to EMAD R for the exchange of information between NMAAs), the NMAA shall exchange any safety-significant information stemming from the occurrence reports with other concerned NMAAs.

SUBPART C – CONTINUING AIRWORTHINESS

M.B.301 Aircraft Maintenance Programme (AMP)

- (a) The NMAA shall verify that the AMP is in compliance with EMAR M.A.302.
- (b) Unless stated otherwise in [EMAR M.A.302\(c\)](#), the AMP and its amendments shall be approved directly by the NMAA. The NMAA shall have access to all the data required by [EMAR M.A.302](#)(d), (e) and (f).
- (c) In the case of indirect approval as provided in [EMAR M.A.302\(c\)](#), the NMAA shall approve the AMP approval procedure of the CAMO through that organisation's exposition referred to in EMAR CAMO.A.300.

M.B.302 Exemptions

All exemptions granted shall be recorded and retained by the NMAA.

M.B.303 Aircraft Continuing Airworthiness Monitoring (ACAM)

- (a) The NMAA shall develop a survey programme on a risk-based approach to monitor the airworthiness status of the fleet of aircraft on its register.
- (b) The survey programme shall include sample product surveys of aircraft and shall cover all aspects of airworthiness key risk elements.
- (c) The product survey shall sample the airworthiness standards achieved, on the basis of the applicable requirements, and identify any findings.
- (d) Any findings identified shall be categorised against the requirements of EMAR M and confirmed in writing to the Operating Organisation accountable according to [EMAR M.A.201](#). The NMAA shall have a process in place to analyse findings for their safety significance.
- (e) The NMAA shall record all findings and closure actions.
- (f) If during aircraft surveys evidence is found showing non-compliance with EMAR M or with any other EMAR, the finding shall be dealt with as prescribed by the relevant EMAR.
- (g) If applicable (refer to EMAD R for the exchange of information between NMAAs), to ensure appropriate enforcement action, the NMAA shall exchange information on non-compliances identified in accordance with point (f) with other NMAAs.

M.B.304 Revocation and suspension of a MARC

The NMAA shall:

- (a) suspend a MARC on reasonable grounds in the case of a potential safety threat; or
- (b) suspend or revoke a MARC pursuant to EMAR M.B.903(1).

M.B.305 Aircraft technical log system

- (a) The NMAA shall approve the initial aircraft technical log system required by [EMAR M.A.306](#).
- (b) To enable the organisation to implement changes to the aircraft technical log system without prior NMAA approval, the NMAA shall approve the relevant procedure referred to in EMAR CAMO.A.300(c).

SUBPART D – MAINTENANCE STANDARDS

To be developed as appropriate.

SUBPART E - COMPONENTS

To be developed as appropriate.

SUBPART F – MAINTENANCE ORGANISATION

NOT APPLICABLE

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SUBPART G – CONTINUING AIRWORTHINESS MANAGEMENT ORGANISATION (CAMO)

NOT APPLICABLE – See EMAR CAMO

SUBPART H – CERTIFICATE OF RELEASE TO SERVICE (CRS)

NOT APPLICABLE

SUBPART I – MILITARY AIRWORTHINESS REVIEW CERTIFICATE (MARC)

M.B.901 Assessment of recommendations

Upon receipt of an application and associated MARC recommendation in accordance with EMAR M.A.901:

- (a) appropriately qualified personnel of the NMAA shall verify that the compliance statement contained in the recommendation demonstrates that a complete airworthiness review in accordance with [EMAR M.A.901](#) has been carried out.
- (b) the NMAA shall investigate and may request further information to support the assessment of the recommendation.

M.B.902 Airworthiness review by the NMAA

- (a) When the NMAA carries out the airworthiness review and issues the MARC (EMAR Form 15a), the NMAA shall carry out an airworthiness review in accordance with [EMAR M.A.901](#).
- (b) The NMAA shall have appropriate ARS to carry out the airworthiness reviews.

1. Such staff shall have:

- (i) acquired at least 5 years experience in continuing airworthiness;
- (ii) acquired an appropriate MAML in compliance with EMAR 66 or an aeronautical degree or equivalent;
- (iii) received formal aeronautical maintenance training;
- (iv) held a position with appropriate responsibilities.

Notwithstanding points (b)1(i) to (iv) above, the requirement laid down in point (b)1(ii) may be replaced by five years of experience in continuing airworthiness additional to those already required by point (b)1(i).

2. NOT APPLICABLE.

- (c) The NMAA shall maintain a record of all ARS which shall include details of any appropriate qualification held together with a summary of relevant continuing airworthiness management experience and training.
- (d) The NMAA shall have access to the applicable data as specified in [EMAR M.A.305](#), [EMAR M.A.306](#) and EMAR 145.A.45 in the performance of the airworthiness review.
- (e) The staff that carries out the airworthiness review shall issue an EMAR Form 15a after satisfactory completion of the airworthiness review.

M.B.903 Findings

If during aircraft surveys, or by other means, evidence is found showing non-compliance to an EMAR M requirement, the NMAA shall take the following actions:

- 1. for level 1 findings, the NMAA shall require appropriate corrective action to be taken before further flight and immediate action shall be taken by the NMAA to revoke or suspend the MARC;
- 2. for level 2 findings, the corrective action required by the NMAA shall be appropriate to the nature of the finding.

M.B.904 Exchange of information

TO BE ADDED LATER, IF REQUIRED

Appendix I – Continuing Airworthiness Management Contract

1. When an Operating Organisation contracts a CAMO in accordance with [EMAR M.A.201](#) to carry out continuing airworthiness management tasks, upon request by the NMAA a copy of the contract shall be sent by the Operating Organisation to the NMAA once it has been signed by both parties.
2. The contract shall be developed taking into account the requirements of EMAR M and shall define the obligations of the signatories in relation to the management of the continuing airworthiness of the aircraft.
3. It shall contain as a minimum the following information:
 - aircraft registration(s), aircraft type/model and aircraft serial number(s);
 - aircraft Operating Organisation details including the address;
 - details of the contracted CAMO including the address.

4. It shall state the following:

The Operating Organisation entrusts the CAMO with the management of the continuing airworthiness of the aircraft, the development of an Aircraft Maintenance Programme (AMP) that shall be approved by the NMAA, and the organisation of the maintenance of the aircraft according to said AMP.

According to the present contract, both signatories undertake to follow the respective obligations of this contract.

The Operating Organisation declares, to the best of its knowledge that all the information given to the CAMO concerning the continuing airworthiness of the aircraft is and will be accurate and that the aircraft will not be altered without prior approval of the CAMO.

In case of any non-conformity with this contract, by either of the signatories, the contract will become null. In such a case, the Operating Organisation will retain full responsibility for every task linked to the continuing airworthiness of the aircraft and the Operating Organisation will inform the NMAA within 2 weeks about such non-conformity with the contract.

5. When an Operating Organisation contracts a CAMO in accordance with [EMAR M.A.201](#) the obligations of each party shall be assigned as follows:

5.1. Obligations of the CAMO:

1. have the aircraft type/model in its terms of approval;
2. respect the conditions listed below with regard to maintaining the continuing airworthiness of the aircraft:
 - (a) develop an AMP for the aircraft, including any reliability programme developed, if applicable;
 - (b) NOT APPLICABLE;
 - (c) organise the approval of the AMP;
 - (d) once it has been approved, provide the Operating Organisation with a copy of the AMP;

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- (e) organise a bridging inspection of the aircraft to comply with the new AMP by taking into account the previous AMP;
 - (f) organise for all maintenance to be carried out by an approved maintenance organisation;
 - (g) organise for all applicable ADs to be applied;
 - (h) organise for all defects discovered during scheduled maintenance, airworthiness reviews or reported by the Operating Organisation to be rectified by an approved maintenance organisation;
 - (i) coordinate scheduled maintenance, the application of ADs, the replacement of life-limited parts, and component inspection requirements;
 - (j) inform the Operating Organisation each time the aircraft shall be brought to an approved maintenance organisation;
 - (k) manage all technical records;
 - (l) archive all technical records.
- 3. Organise the approval of any modification to the aircraft in accordance with EMAR 21 before it is carried out;
 - 4. Organise the approval of any repair to the aircraft in accordance with EMAR 21 before it is carried out;
 - 5. inform the NMAA whenever the aircraft is not presented to the approved maintenance organisation by the Operating Organisation as requested by the CAMO;
 - 6. inform the NMAA whenever the present contract is not respected;
 - 7. ensure that the airworthiness review of the aircraft is carried out when necessary, and ensure that the Military Airworthiness Review Certificate (MARC) is issued or a recommendation is sent to the NMAA;
 - 8. send within 10 days a copy of any MARC issued or extended, to the NMAA;
 - 9. carry out all applicable mandated occurrence reporting;
 - 10. inform the NMAA when the contract is denounced by either party.
- 5.2. Obligations of the Operating Organisation:
- 1. have a general understanding of the approved AMP;
 - 2. have a general understanding of EMAR M;
 - 3. present the aircraft to the approved maintenance organisation agreed with the CAMO at the due time designated by the CAMO's request;
 - 4. not modify the aircraft without first consulting the CAMO;
 - 5. inform the CAMO of all maintenance exceptionally carried out without the knowledge and control of the CAMO;
 - 6. report all defects found during operations to the CAMO through the aircraft technical log system;
 - 7. inform the NMAA whenever the present contract is denounced by either party;
 - 8. inform the NMAA and the CAMO whenever the aircraft is no longer operated by the Operating Organisation;

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9. carry out all applicable mandated occurrence reporting;
 10. inform on a regular basis the CAMO about the aircraft flying hours and any other utilisation data, as agreed with the CAMO;
 11. NOT APPLICABLE;
 12. NOT APPLICABLE.
6. NOT APPLICABLE.

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Appendix II – Authorised Release Certificate EMAR Form 1

EMAR Form 1 is contained in the EMAR Forms document.

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Appendix III – Military Airworthiness Review Certificate – EMAR Form 15

EMAR Forms 15a and 15b are contained in the EMAR Forms document.

**Appendix IV – Class and Ratings System to be used for the Approval of
Maintenance Organisations**

NOT APPLICABLE - See EMAR 145 Appendix II.

Appendix V – Maintenance Organisation certificate referred to in EMAR M Subpart F

NOT APPLICABLE

**Appendix VI – Continuing Airworthiness Management Organisation certificate
referred to in EMAR M Subpart G**

NOT APPLICABLE

Appendix VII – Complex Maintenance Tasks

NOT APPLICABLE

Appendix VIII – Limited Pilot-Owner Maintenance

NOT APPLICABLE